

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #15	CCRB Case #: 202307065	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 07/08/2023 5:40 PM	Location of Incident: Linden Boulevard and Merrick Boulevard	18 Mo. SOL 1/8/2025	Precinct: 113
Date/Time CV Reported Sat, 07/08/2023 9:58 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/01/2023 8:45 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Abdulhadi Chalati	10501	956511	QS SU CRT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Freddy Guevara	13815	960626	QS SU CRT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Abdulhadi Chalati	Force: Police Officer Abdulhadi Chalati struck § 87(2)(b) with a vehicle.	A . Substantiated
B . PO Abdulhadi Chalati	Discourtesy: Police Officer Abdulhadi Chalati spoke discourteously to § 87(2)(b)	B . Within NYPD Guidelines

Case Summary

On July 8, 2023, Lieutenant Danny Lei of the Queens South CRT reported this complaint to IAB on behalf of § 87(2)(b). On August 1, 2023, the complaint was forwarded to the CCRB via IAB log § 87(2)(b).

At approximately 5:40 p.m. on July 8, 2023, § 87(2)(b) was driving his motorcycle along Linden Boulevard in Queens. He stopped at a red light at the intersection with Merrick Boulevard. § 87(2)(b) noticed an unmarked vehicle stopped on the other side of the intersection in the opposite lane. Police Officer Abdulhadi Chalati and Police Officer Freddy Guevara of the Queens South CRT were riding in the vehicle. PO Chalati was driving. When the light turned green, § 87(2)(b) drove through the intersection. PO Chalati then turned the unmarked vehicle into the oncoming lane of traffic to block his path. The unmarked vehicle struck § 87(2)(b) left leg with the front of his vehicle (**Allegation A: Force – Vehicle, substantiated**). PO Chalati and PO Guevara exited their vehicle. PO Chalati argued with § 87(2)(b). During this argument, PO Chalati told § 87(2)(b) “Don’t fucking touch me” (**Allegation B: Discourtesy – Word, within NYPD guidelines**). PO Chalati eventually issued § 87(2)(b) summonses for riding a motorcycle without eye protection and having an obscured license plate (Board Review #01).

The investigation obtained cell phone footage that § 87(2)(b) recorded (Board Review #02) as well as BWC footage (Board Review #03). No other footage was found.

Findings and Recommendations

Allegation (A) Force: Police Officer Abdulhadi Chalati struck § 87(2)(b) with a vehicle.

On August 31, 2023, § 87(2)(b) was interviewed by the CCRB. § 87(2)(b) stated that a friend was with him during the incident. § 87(2)(b) did not know the friend’s full name or contact information. As such, the investigation was unable to contact him or obtain his statement. On February 8, 2024, PO Chalati was interviewed by the CCRB. On May 9, 2024, PO Guevara was interviewed by the CCRB.

It is undisputed that § 87(2)(b) and his friend were riding motorcycles westbound on Linden Boulevard. They came to a stop at a red light at the intersection with Merrick Boulevard. PO Chalati and PO Guevara were riding eastbound on Linden Boulevard at the time and came to a stop on the opposite side Merrick Boulevard. When the light turned green, § 87(2)(b) drove forward, crossing the intersection. PO Chalati turned his vehicle into the westbound lane of traffic, blocking § 87(2)(b) path. § 87(2)(b) stopped his motorcycle and accused PO Chalati of striking him with the vehicle.

§ 87(2)(b) denied that he had any pre-existing injury to his left leg at the time of the incident. He stated that he noticed PO Chalati’s vehicle across the intersection, stopped in the turning lane on the opposite side of the street. He did not know at the time that it was a police vehicle. When the traffic light turned green, he drove across the intersection. He estimated that he was going at approximately ten miles per hour. When he reached the crosswalk on the opposite side of the intersection, PO Chalati suddenly turned his vehicle left, into the westbound lane of traffic. The front of the vehicle struck § 87(2)(b) left leg. PO Chalati then accelerated forward, pushing § 87(2)(b) and his motorcycle towards the curb. The impact knocked § 87(2)(b) and his motorcycle to the right, but § 87(2)(b) was able to keep his balance and avoid falling. The officers did not engage their emergency lights or sirens before PO Chalati turned into the westbound lane. The

officers offered § 87(2)(b) medical attention after he complained that PO Chalati had hit him. § 87(2)(b) refused the offer because he was uncomfortable around the officers. After the incident, § 87(2)(b) left foot started to swell up. He went to the emergency room at § 87(2)(b) Center § 87(2)(b) after experiencing swelling on his legs.

The investigation was unable to obtain § 87(2)(b) medical records because he did not sign a release form. On September 7, 2023, § 87(2)(b) provided several photographs after his interview, which depict a dark strip of skin along the top of his left ankle. § 87(2)(b) stated that this mark was caused by the impact on the unmarked vehicle on his left leg. § 87(2)(b) did not indicate when these photographs were taken (Board Review #04).

§ 87(2)(b) also provided cell phone footage that he recorded during the incident (Board Review #02). The footage, however, begins after the collision and only records his subsequent conversation with PO Chalati and the other officers.

PO Chalati stated that he was stopped at the red light for about thirty seconds. He first noticed § 87(2)(b) and his unidentified friend during this time when they were stopped on opposite sides of the intersection. PO Chalati estimated that they were about 30 feet away from him. PO Chalati was not familiar with either civilian prior to this incident. Because PO Chalati's vehicle was in the opposite lane, he observed § 87(2)(b) motorcycle from a slight angle. He noticed that the motorcycle's license plate, which was mounted on the rear of the vehicle, was bent. PO Chalati also noticed that § 87(2)(b) was not wearing appropriate eye protection, such as goggles or a face shield, that drivers operating motorcycles are required to wear. He initially stated that while § 87(2)(b) was wearing a helmet at the time, the helmet was improper. When asked to explain what was improper about the helmet, PO Chalati stated that motorcycle helmets are required to display an inspection sticker from the US Department of Transportation to certify that they meet safety standards. He did not recall where that sticker is usually displayed on helmets. He did not recall seeing an inspection sticker on § 87(2)(b) helmet. When asked if there were any specific safety features that the helmet was missing besides a face shield, PO Chalati stated that the helmet looked "more like a hat" than a helmet. PO Chalati identified § 87(2)(b) bent license plate, his lack of facial covering and his improper helmet as VTL violations. PO Chalati decided to pull § 87(2)(b) over to address these violations. He did not recall discussing this decision with PO Guevara. When asked if he suspected that § 87(2)(b) motorcycle was an illegal dirt bike, PO Chalati stated that it was possible but that he could not tell from across the intersection. When asked if his decision to stop the motorcycle was influenced by a desire to inspect the motorcycle to determine if it was street legal, PO Chalati stated that he "had to see if the bike was legit or not." PO Chalati did not recall if he observed any issues with the other motorist's gear, including whether he had an appropriate helmet or face covering.

When the traffic light turned green, § 87(2)(b) accelerated into the intersection. PO Chalati initially stated that § 87(2)(b) drove "too quickly." He could not estimate § 87(2)(b) speed and did not know if exceeded the speed limit, but he did state that he considered § 87(2)(b) to have made an "unsafe start" into the intersection.

PO Chalati decided to stop § 87(2)(b) by using his vehicle to block the path of his motorcycle. He turned his vehicle to the left, moving it into the westbound lane of traffic. His vehicle was positioned perpendicular to oncoming traffic. He estimated that about half of his vehicle was in the westbound lane. He then brought his vehicle to a full stop. PO Chalati did not recall taking any other actions to get § 87(2)(b) to stop, such as activating his vehicle's emergency lights or sirens or issuing § 87(2)(b) a verbal command. PO Chalati stated that he was concerned that § 87(2)(b) might try to flee from him when he initiated the stop because motorcycles, dirt bikes, and other

similar vehicles usually flee from the police when they are pulled over.

§ 87(2)(b) continued driving as PO Chalati moved his vehicle into the westbound lane. After PO Chalati stopped his vehicle, § 87(2)(b) turned to the right to drive around the front of PO Chalati's vehicle. PO Chalati was not aware of either § 87(2)(b) or § 87(2)(b) motorcycle touching the unmarked vehicle as he passed in front of him. He did not feel any impact in his vehicle. He did not recall § 87(2)(b) appearing to lose his balance as he drove around the front of the vehicle. § 87(2)(b) stopped his motorcycle after passing the unmarked vehicle. He accused PO Chalati of striking him with the front of the vehicle. PO Chalati did not recall if § 87(2)(b) accused him of striking his body or his motorcycle with the unmarked vehicle. PO Chalati exited his vehicle to speak to § 87(2)(b). He did not notice any injuries to § 87(2)(b) person or damage to his motorcycle. Because § 87(2)(b) claimed that the vehicle struck him, though, PO Chalati asked § 87(2)(b) if he wanted medical attention. § 87(2)(b) refused the offer.

PO Guevara also stated that he observed that § 87(2)(b) rear license plate was bent from across the intersection. PO Chalati then pointed out to him that § 87(2)(b) did not have goggles or a face shield. PO Guevara was unfamiliar with motorcycle safety regulations and did not know if the lack of goggles or a face shield was a VTL violation. PO Guevara did not suspect at the time that § 87(2)(b) vehicle was not street legal. When the light turned green, § 87(2)(b) started driving forward at five to ten miles per hour. PO Chalati attempted to stop § 87(2)(b) by turning his vehicle into the westbound lane. PO Guevara denied that PO Chalati discussed or announced his decision to stop § 87(2)(b) with him. PO Chalati did not activate the unmarked vehicle's lights or sirens. PO Guevara did not know how fast the unmarked vehicle went when it turned into the westbound lane but stated that it was moving slowly.

PO Guevara initially stated that the motorcycle and the unmarked vehicle collided. He then stated that § 87(2)(b) passed in front of the unmarked vehicle, but that he did not initially notice any signs of impact, such as feeling the vehicles bump into each other, hearing any sounds, or seeing § 87(2)(b) being knocked off balance or falling down. He noted that both the unmarked vehicle and § 87(2)(b) motorcycle were still moving when they passed each other. Immediately afterwards, though, both vehicles stopped. § 87(2)(b) then accused PO Chalati of striking him with the vehicle. PO Guevara stated that he was unaware of the alleged collision until he heard § 87(2)(b) accusation. He did not notice any damage to either vehicle. He initially stated that he believed that the front left bumper of the unmarked vehicle struck somewhere on the left side of § 87(2)(b) motorcycle, but that he was unaware if the unmarked vehicle struck § 87(2)(b) leg. He then stated that § 87(2)(b) claimed that the vehicle struck his left leg, leaving abrasions on his left ankle. PO Guevara saw the abrasions himself. He asked § 87(2)(b) if he wanted medical attention for his injury, but § 87(2)(b) refused the offer.

A review of the intersection on Google Maps showed that Linden Boulevard is a two-way street running east to west. There is one lane of traffic heading in either direction. Both sides of the street have left-turn lanes installed at the intersection with Merrick Boulevard. The two sides of the intersection are 130 feet apart (Board Review #05).

§ 87(2)(b) a claim representative of the Progressive insurance company, filed a Vehicular Property Damage Claim Form with the NYC Office of the Comptroller on behalf of § 87(2)(b) who is a Progressive customer. The report states that a police cruiser ran through a red light, colliding with § 87(2)(b) motorcycle (Board Review #06).

PO Chalati prepared a vehicle report to document this incident (Board Review #01). It states that he pulled § 87(2)(b) over for riding a motorcycle without appropriate face shielding.

Lt. Lei prepared a police accident report as well (Board Review #07). It states that PO Chalati informed him that he was driving eastbound on Linden Boulevard, at the intersection with Merrick Boulevard, when he observed § 87(2)(b) riding westbound on a blue dirt bike. § 87(2)(b) was wearing a helmet but did not have appropriate face shielding. His license plate was also improperly displayed. PO Chalati attempted to initiate a traffic stop by placing his vehicle in front of § 87(2)(b) vehicle. § 87(2)(b) tried to avoid the stop by swerving his dirt bike to the right. § 87(2)(b) then stopped his vehicle and accused PO Chalati of striking him with his police vehicle. Lt. Lei did not observe any damage to § 87(2)(b) property. § 87(2)(b) alleged that he suffered a minor laceration to his left ankle and refused medical attention. The report includes a diagram, indicating that the police vehicle turned left, placing its front-left bumper into the oncoming lane of traffic. The motorcycle turned to the right, so that its left side was exposed to the front-left bumper of the police vehicle.

Captain Berkley Vantull of Patrol Borough Queens South prepared a TRI report for this incident (Board Review #08). It states that PO Chalati and PO Guevara attempted to conduct a vehicle stop on § 87(2)(b) at the intersection of Linden Boulevard and Merrick Boulevard. The officers were trying to stop him because he was not wearing a face shield and had an improperly displayed license plate. § 87(2)(b) evaded the officers by driving around their vehicle. When he did stop, § 87(2)(b) accused the officers of hitting him with their vehicle, causing a laceration to his left leg. He refused medical attention.

Both officers recorded this incident via BWC. PO Chalati's footage (Board Review #09) shows him driving his unmarked vehicle eastbound on Linden Boulevard. There is no sound at the start of the recording, as it takes place before PO Chalati triggers his BWC. The camera is positioned below the vehicle's windshield. As such, the camera angle does not show the area in front of the vehicle. Traffic is stopped at the intersection with Merrick Boulevard due to a red light. At 0:40 into the recording, PO Chalati moves into the left turn lane. There are no other vehicles in the lane. § 87(2)(b) is visible on the other side of the intersection in the westbound lane, facing towards PO Chalati. The traffic light then turns green. At 0:50 into the recording, PO Chalati turns the wheel to the left and moves forward. The unmarked vehicle's emergency lights are not active. At 0:54 into the recording (which corresponds to 5:40:16 p.m.), the vehicle brakes suddenly, jerking the vehicle forward. PO Chalati reaches towards the gear shift with his right hand. The vehicle then jerks a second time and comes to a stop. As the vehicle jerks, § 87(2)(b) upper body appears in the windshield and starts moving to the left. He is not seen jerking or moving as he moves in front of the vehicle. The camera's view of § 87(2)(b) is briefly obstructed by the unmarked vehicle's steering wheel before it passes out of the left side of the frame. PO Chalati exits the driver's seat and triggers his BWC, activating the sound. § 87(2)(b) now seen to be riding a blue motorbike, is stopped next to the driver's side of PO Chalati's vehicle. § 87(2)(b) is wearing a red helmet with no goggles or face shield. There is no apparent damage to § 87(2)(b) motorbike. He is wearing a pair of shorts and sneakers. No injuries are visible on his left leg. § 87(2)(b) states, "You just hit me." PO Chalati tells him to get off the motorcycle.

PO Guevara's BWC footage (Board Review #10) also recorded this portion of the incident. It shows that he was sitting in the unmarked vehicle's front passenger seat. His camera angle is slightly higher than PO Chalati's, so it provides a better view of what was in front of the officers' vehicle. At 0:40 into the recording, PO Chalati moves the unmarked vehicle into the left turn lane. § 87(2)(b) is visible on the opposite side of the intersection, facing towards the officers. At 0:50, when the light turns green, § 87(2)(b) starts driving forward. The vehicle turns to the left, angling into the westbound lane. § 87(2)(b) continues moving forward but starts turning towards his right, away from the unmarked vehicle. The vehicle jerks once as it slows. At 0:53, § 87(2)(b) passes in

front of the officers' vehicle. The vehicle jerks for a second time as § 87(2)(b) passes. § 87(2)(b) looks down towards the front-left corner of the officers' vehicle with an alarmed expression as he passes. As with PO Chalati's footage, there is no sound at this point in the recording.

AVL data for PO Chalati's and PO Guevara's vehicle (Board Review #11) shows that the vehicle was driving northeast on Linden Boulevard for several minutes before the incident. At 5:39:24 p.m., it was driving at 15.59 MPH by 170-23 Linden Boulevard. The next ping is at 5:42:25 p.m., where it drives at 0.04 MPH at 170-81 Linden Boulevard.

The preponderance of the evidence indicates that § 87(2)(b) left leg did make contact with the front of PO Chalati's vehicle. PO Chalati stated that he brought his vehicle to a stop before § 87(2)(b) reached him. § 87(2)(b) then turned right to drive around the front of the vehicle. § 87(2)(b) stated instead that the unmarked vehicle ran into his left leg and then accelerated, pushing the motorcycle to the right, though not hard enough to knock him over.

The BWC footage shows that PO Chalati pulled his vehicle into the oncoming lane approximately four seconds before § 87(2)(b) reached his vehicle. While PO Chalati claimed that he fully stopped his vehicle before § 87(2)(b) reached him, the BWC shows his vehicle jerking forward twice, once immediately before § 87(2)(b) appears in front of the windshield and once as he passes in front of the vehicle. This indicates that his vehicle was still decelerating when § 87(2)(b) reached him. As the vehicle jerks, § 87(2)(b) turns his motorcycle to the right. He is not seen falling or losing his balance or otherwise being physically diverted from his course by an impact.

The investigation was unable to determine PO Chalati's speed at the time using AVL data. The BWC footage indicates that PO Chalati pulled his vehicle into the westbound lane at 5:40:16 p.m., 52 seconds since the most recent AVL ping and 2:09 seconds before the next AVL ping. Since the collision allegedly occurred during the gap between these pings, there was insufficient data to establish PO Chalati's speed.

While the footage does not support § 87(2)(b) claim that PO Chalati accelerated after first making contact with his leg and almost knocking his motorcycle over, it does indicate that there was some level of contact. The proximity of the two vehicles, the short window of time between when PO Chalati entered the oncoming traffic lane and when § 87(2)(b) motorcycle reached the unmarked vehicle, and the fact that PO Chalati's vehicle was still decelerating when § 87(2)(b) reached him, taken together, suggest that § 87(2)(b) left leg did strike the front of the vehicle as he tried to turn around it. This is also supported by PO Guevara, who acknowledged seeing an injury on § 87(2)(b) left ankle after he exited the unmarked vehicle.

NYPD Patrol Guide procedure 221-15 (Board Review #12) states that when an officer observes a vehicle that they intend to stop, they should consider several factors when determining whether it is necessary to initiate a vehicle pursuit, including the nature of the underlying offense and the immediate location. The Department forbids officers from pursuing a vehicle when the risk of the pursuit outweighs the danger to the community if the suspect is not immediately apprehended. Ramming a vehicle or placing a moving police vehicle in a position to be struck by the pursued vehicle are generally prohibited when attempting to stop a vehicle. Unmarked vehicles are expected to limit their involvement in vehicle pursuits.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Discourtesy: Police Officer Abdulhadi Chalati spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) did not mention PO Chalati using profanity during the incident. He also did not mention PO Chalati removing his motorcycle's keys from the ignition.

PO Chalati's BWC recording captures his conversation with § 87(2)(b) after the stop (Board Review #09). § 87(2)(b) angrily accuses PO Chalati of hitting him with his vehicle. He steps off his motorcycle, turns off its engine, and steps away from it. PO Chalati insists that § 87(2)(b) failed to stop his motorcycle. He then asks § 87(2)(b) for his license and registration. § 87(2)(b) tells him to call his supervisor and states that he will give his identification to the supervisor. At 3:05 into the recording, PO Chalati reaches towards the ignition of § 87(2)(b) motorcycle and tries to remove the key. § 87(2)(b) walks back over to the motorcycle, tells PO Chalati not to take the key, and pushes PO Chalati's hand away. PO Chalati tells him, "Don't fucking touch me." § 87(2)(b) asks PO Chalati if he wants to fight him. PO Guevara and the other motorist separate the two of them. PO Chalati then removes the key.

PO Chalati did not independently recall using profanity during his interaction with § 87(2)(b). After reviewing his BWC footage, PO Chalati confirmed that he is the person recorded telling § 87(2)(b) "Don't fucking touch me." When asked why he made this statement, PO Chalati stated that he used profanity because he was in close proximity to § 87(2)(b). He also felt that § 87(2)(b) was a threat to his safety because § 87(2)(b) had just touched his arm.

PO Guevara did not recall hearing PO Chalati use profanity during this incident.

The NYPD Patrol Guide mission statement states that the department is dedicated to respecting the dignity of each individual and to render services with courtesy and civility (Board Review #13).

An officer may use limited profanity as a means of gaining control of a dynamic situation. Officers may not use profanity when it is solely intended to insult or demean. PD v. Pichardo, DAO-DCT Case #2015-15012 (Board Review #14).

§ 87(2)(g)

§ 87(2)(b) The BWC footage showed that he and § 87(2)(b) were engaged in an argument at the time. He used profanity in response to § 87(2)(b) grabbing his arm. § 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **within NYPD guidelines**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review #15).
- PO Chalati has been a member of the service for nine years and has been a subject in three other CCRB complaints and nine allegations, none of which have been substantiated. § 87(2)(b)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 22, 2023, the NYC Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 15

Investigator:	<u>Owen Godshall</u>	<u>SI Owen Godshall</u>	<u>05/13/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u></u>	<u>IM Simon Wang</u>	<u>05/14/24</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date